

Tentative Rulings
July 27, 2026
Department 42

Tentative Rulings for Guardianship cases can be found in the link titled, “Department Guardianships - Tentative Rulings.”

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court’s website (www.shasta.courts.ca.gov) and are available by clicking on the “Tentative Rulings” link under the “Online Services” tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

*****IMPORTANT: PLEASE NOTE THAT THE COURT NO LONGER USES COURTCALL. REMOTE APPEARANCES MAY NOW BE MADE THROUGH WEBEX.*****

Remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

To appear through WebEx, please follow these instructions:

Call 1-(844) 517-1271 at least 10 minutes before your hearing start time.

The access code is 249 980 30608. There is no attendee ID number, so just follow verbal instructions for prompt.

Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

- 1. Please mute your telephone until your case is called.**
- 2. Please do not place the call on hold.**
- 3. Minimize all background noise during your call.**
- 4. Please identify yourself, each time, prior to speaking with the court.**
- 5. Disconnect when the court has completed your case or cases.**
- 6. The court prohibits the recording of these proceedings.**

3:30 p.m. – Special Set Law & Motion

SIERRA PACIFIC WAGE AND HOUR CASES

Case Number: 5235

Tentative Ruling on Motion Compelling Plaintiffs to File a Trial Plan with the Court: Defendant Sierra Pacific Industries (SPI) seeks an Order compelling Plaintiffs Quinton McDonald, Robert Sherrill, and Gary Duneheew to file a trial plan with the Court. Plaintiffs do not dispute that a trial plan is necessary, but oppose the timing and contents. Specifically, SPI requests that a trial plan be filed within 30 days that addresses, at minimum, the following:

- The elements of each certified claim.

- The specific common evidence supporting each element.
- *The specific individualized issues Plaintiff contends need not be adjudicated.*
- The proposed phases of trial.
- The proposed witnesses.
- The treatment of affirmative defenses.
- Any proposed use of representative testimony.
- Any proposed use of surveys, extrapolation, or statistical sampling.
- The methodology for determining damages.
- The methodology for determining penalties
- *The procedure for adjudicating disputed individual issues.*
- Proposed verdict forms.
- Proposed jury instructions.
- Estimated trial length.
- Any claims administration process.

Plaintiffs have agreed to file a trial plan that contains all of the requested items with the exception of those that are italicized above. The parties do not agree as to timing. Plaintiffs suggest waiting to file the trial plan until after SPI's Motion for Decertification (noticed for August 17, 2026) and Plaintiffs' Motion for Summary Judgment/Adjudication (not yet filed but calendared for November 9, 2026) are heard. Plaintiffs' proposal is that the trial plan be filed on November 20, 2026 with SPI filing any objections by December 4, 2026 and having a hearing in early January 2027.

Generally, a trial plan is provided at the certification stage. This assists the Court with determining if proceeding as a class action is manageable. This Court has not found any case law or statutory authority that requires that a trial plan be filed as a separate document or specifies the format or specific contents of a trial plan. The Court heard Plaintiffs' Motion for Class Certification on October 21, 2022. A trial plan was not separately filed, however, sufficient information was provided in the Motion for Class Certification for the Court to find that proceeding as a class action was superior to proceeding on an individual basis. Plaintiffs presented an expert who rendered an opinion regarding how time records could be used. While Plaintiffs did not file a separate trial plan, Plaintiffs provided enough evidence that the trial would be manageable. "After a class has been certified, the court's obligation to manage individual issues does not disappear." *Duran v. U.S. Bank National Assn.* (2014) 59 Cal. 4th 1, 29.

This matter was stayed from September 2023 through April 2026. Following the stay, the trial date was set for June 1, 2027. SPI now seeks to compel Plaintiffs to produce a trial plan so that SPI is able to prepare for trial. The Court finds that Plaintiffs' suggested timeline does not allow for sufficient time ahead of trial. While the Court has not yet heard the Motion for Decertification and the Motion for Summary Judgment/Adjudication has not been filed, it appears that either would reduce issues or eliminate portions of the trial plan, not change them or create extra work for Plaintiffs. The Court is cognizant that a trial plan in a complex action such as this would require extensive work, therefore, the Court will order that the trial plan be filed and served no later than October 9, 2026. The Court does not intend to set a briefing schedule regarding the trial plan. If SPI takes any issue with the trial plan, SPI can file an objection. The Court will set a pre-trial conference to review the trial plan and any objections thereto.

Regarding contents, the parties are largely in agreement. Plaintiffs object to the two bullet points addressing individual issues. *Duran* specifically held that "a class action trial management plan must permit the litigation of relevant affirmative defenses, even when these defenses turn on individual questions" *Duran, supra*, 59 Cal. 4th at 23.

The Court finds that each of the bullet points listed below should be addressed at this stage of the proceedings.

- The elements of each certified claim.
- The specific common evidence supporting each element.
- The specific individualized issues Plaintiff contends need not be adjudicated.
- The proposed phases of trial.
- The proposed witnesses.
- The treatment of affirmative defenses.
- Any proposed use of representative testimony.
- Any proposed use of surveys, extrapolation, or statistical sampling.
- The methodology for determining damages.
- The methodology for determining penalties
- The procedure for adjudicating disputed individual issues.

Plaintiffs shall file and serve a trial plan that adequately addresses each of these topics. Plaintiffs are cautioned that failure to address each aspect of manageability can result in decertification because “decertification must be ordered whenever a trial plan proves unworkable.” *Duran, supra*, 59 Cal 4th at 32.

The Court finds that each of the bullet points listed below are not necessary at this state of the proceedings.

- Proposed verdict forms.
- Proposed jury instructions.
- Estimated trial length.
- Any claims administration process.

The length of the trial is dependent on the outcome of any motions for summary judgment or adjudication. The proposed jury instructions and verdict form can be provided closer to trial. It is unclear what SPI means by “any claims administration process”.

The motion is **GRANTED** as modified above. Plaintiffs shall file and serve a trial plan that adequately addresses all but the last four bullet points on or before October 9, 2026. SPI provided a proposed Order that will be modified to reflect the Court’s ruling.